

FL-25-003449 RIVERS VS RIVERS

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-09-14

Motion: Petitioner's Request for Order re Property Control, etc.—GRANTED, in part, and unopposed; HEARING REQUIRED, in part. The Court granted an Order Shortening Time and Temporary Orders. Proof of personal service of Respondent is on file, Proof of Service of Summons on Respondent is on file, and no Response to the Petition or Responsive Declaration has been filed. Accordingly, the Court finds that presumptively valid and timely notice and service has been effectuated. The requests for property control and exclusive possession pendente lite are granted, and unopposed. That said, subject to testimony and evidence at the hearing, the Court is inclined not to grant a pendente lite sale order for the residence located at 245 High Street, Modesto, California, at this time. The Court's authority for a non-consensual, pre-trial sale order is limited to Family Code section 2108 and requires proof of unreasonable market risk of loss. This authority was not cited by Petitioner's counsel and no showing as to risk of loss was made. Even assuming there was an agreement between the parties to list the subject residence for sale, this agreement was never reduced to a Stipulation and Order, a Marital Settlement Agreement, or resulted from any proceeding "before the Court" that could be boot-strapped into an enforceable obligation under the Family Code or Code of Civil Procedure. (See, Code Civ. Proc., § 664.6.) The ATRO's are presently in effect between both parties and the Court's role, before trial, is to preserve the marital estate and the status quo ante absent exceptional circumstances and authority to the contrary. Given the circumstances alleged in Petitioner's declaration, the Court can certainly understand the reasons for seeking a pendente lite sale order and encourages the parties to reach an agreement by meeting and conferring in good faith on this point, as they are required to do. (Cal. Rules of Ct., rule 5.98(a).) The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: 654f38b154f442b747a482ada53ba0ec794c85bfc6a0adaa02b909af12da104f

FL-25-003449 – RIVERS VS RIVERS

Petitioner's Request for Order re Property Control, etc.—GRANTED, in part, and unopposed; HEARING REQUIRED, in part.

The Court granted an Order Shortening Time and Temporary Orders. Proof of personal service of Respondent is on file, Proof of Service of Summons on Respondent is on file, and no Response to the Petition or Responsive Declaration has been filed. Accordingly, the Court finds that presumptively valid and timely notice and service has been effectuated.

The requests for property control and exclusive possession pendente lite are granted, and unopposed. That said, subject to testimony and evidence at the hearing, the Court is inclined not to grant a pendente lite sale order for the residence located at 245 High Street, Modesto, California, at this time.

The Court's authority for a non-consensual, pre-trial sale order is limited to Family Code section 2108 and requires proof of unreasonable market risk of loss. This authority was not cited by Petitioner's counsel and no showing as to risk of loss was made. Even assuming there was an agreement between the parties to list the subject residence for sale, this agreement was never reduced to a Stipulation and Order, a Marital Settlement Agreement, or resulted from any proceeding "before the Court" that could be boot-strapped into an enforceable obligation under the Family Code or Code of Civil Procedure. (See, Code Civ. Proc., § 664.6.) The ATRO's are presently in effect between both parties and the Court's role, before trial, is to preserve the marital estate and the status quo ante absent exceptional circumstances and authority to the contrary. Given the circumstances alleged in Petitioner's declaration, the Court can certainly understand the reasons for seeking a pendente lite sale order and encourages the parties to reach an agreement by meeting and conferring in good faith on this point, as they are required to do. (Cal. Rules of Ct., rule 5.98(a).)

The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: